

25STCV02684 25STCV02684

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-07-09

Motion: DEFENDANT GENERAL MOTORS, LLC'S DEMURRER TO SECOND AMENDED COMPLAINT

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Case Number: 25STCV02684 Hearing Date: July 9, 2026 Dept: 733

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES

MARICELA

MANDUJANO,

Plaintiff,

vs.

GENERAL

MOTORS, LLC; and DOES 1through 10, inclusive,

Defendants.

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CASE NO.: 25STCV02684

[TENTATIVE] ORDER RE: DEFENDANT GENERAL
MOTORS, LLC'S DEMURRER TO SECOND AMENDED COMPLAINT

Dept. 733

8:30 a.m.

July 9, 2026

I.

INTRODUCTION

This is a Song-Beverly action.

On January 31, 2025, Plaintiff Maricela Mangujano ("Plaintiff")
filed a complaint against Defendant General Motors ("Defendant").

On August 27, 2025, Plaintiff filed a first amended complaint
("FAC").

On April 1, 2026, Plaintiff filed a second amended complaint
("SAC"), alleging causes of action for (1) Violation of Subdivision (d) of
Civil Code section 1793.2, (2) Violation of Subdivision (b) of Civil Code
section 1793.2, (3) Violation of Subdivision (a)(3) of Civil Code section
1793.2 and (4) Fraudulent Inducement – Concealment.

On May 4, 2026, Defendant filed the instant demurrer.

On June 17, 2026, Plaintiff filed an opposition.

On June 25, 2026, Defendant filed a reply.

II.

LEGAL STANDARD

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading “by raising questions of law.” (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) “In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “‘treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . .’” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.)

When a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.)

III.

DISCUSSION

Defendant demurs to all causes of action alleged in the SAC on the grounds that

they are each barred by the applicable statute of limitations.

a.

First,

Second, Third Causes of Action: Violations of the Song-Beverly Act

Defendant demurs to the

first, second, and third causes of action in the SAC because these claims are time barred by the applicable statute of limitations, as Plaintiff purchased the Subject Vehicle on May 21, 2017, but did not file the original complaint until January 31, 2025, almost eight years later.

Previously, the statute of limitations for Song-Beverly claims was four years. (See *Mexia v. Rinker Coat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1305-1306.) But, in September of 2024, the California legislature passed Assembly Bill No. 1755, which changed the statute of limitations timing for Song-Beverly claims. (See 2024 Cal Stats. ch. 938 AB 1755.)

Assembly Bill No. 1755 was passed in 2024. (Ibid.) Under the California Constitution, statutes enacted during regular sessions go into effect on January 1st of the following year. (See CA Constitution art IV § 8.) Thus, this bill came into effect on January 1, 2025. Here, Plaintiffs filed their Song-Beverly claims on March 28, 2025, meaning their claims fall under the new statute of limitations provisions.

Code of Civil Procedure section 871.21(a) (Assembly Bill No. 1755) states that "An action covered by Section 871.20 (which is defined as 'an action seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code' (i.e., Song Beverly)) shall be commenced within one year after the expiration of the applicable express warranty." (Code Civ. Proc., § 871.21(a), emphasis added.) Additionally, the statute states that, "(b) Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle." (Id. § 871.21(a).) To summarize, under this new statute, most Song-Beverly claims must commence within a year of the expiration of the express warranty, but all Song-Beverly claims must be brought within six years of purchasing the vehicle.

Here, Plaintiff did not bring any of her Song-Beverly claims within this six-year time frame. Plaintiff purchased the Subject Vehicle on May 21, 2017. (See SAC ¶ 6.) Plaintiff filed her

Song-Beverly claims on January 31, 2025, more than six years after she bought the Subject Vehicle. (See Compl.) Therefore, under Code of Civil Procedure section 871.21(b), all these claims are facially time-barred. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42 [for a statute of limitations to bar a claim on demurrer, “the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred”].)

But Plaintiff argues that Defendant seeks retroactive application of section 871.21, which cuts off Plaintiff’s existing remedy and constitutes a due process violation, as Defendant had not opted in to the section prior to Plaintiff filing suit until April 23, 2025.

As previously discussed, the assembly bill that created Code of Civil Procedure, section 871.20 was passed in 2024. (2024 Cal. Stats. ch. 938 AB 1755.) Under the California Constitution, statutes enacted during regular sessions go into effect on January 1st of the following year. (See CA Constitution, art. IV, § 8.) Thus, Code of Civil Procedure, section 871.20 went into effect on January 1, 2025, creating a one-year statute of limitations and a six-year statute of repose.

Notably, Code of Civil Procedure section 871.30 creates an opt-in structure for manufacturers: Each vehicle manufacturer has a choice of whether to be governed by the new procedural rules. Section 871.30 provides that, “[w]ithin 30 days of the effective date of the act adding this section, a manufacturer may elect to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles sold in the year 2025 and in all prior years. . .” (Code Civ. Proc., § 871.30, subd. (a).) The effective date of this section was April 2, 2025. (Cal. Leg. Information, Code Civ. Proc., § 871.30, subd. (a).) Thus, this statute specifically provides that, if a manufacturer opts-in to these new procedural rules by May 1st, then all cars previously sold cars will be governed by these new rules.

Here, Plaintiff filed the complaint on January 31, 2025. At that time, Defendant had not yet opted to be governed by Code of Civil Procedure, section 871.20. Plaintiff filed her claims after Code of Civil Procedure, section 871.20 had been enacted, but before Plaintiff could have known that Defendant would opt into this new law. Thus, Code of Civil Procedure, section 871.30, subdivision (a) retroactively applied Code of Civil Procedure, section 871.20 to a claim Plaintiff filed when the old statute of

limitations governed.

This is where the due process issue arises: Where a change in remedy is retroactively made in law, such as the shortening of a time limit provision, there must be a reasonable time permitted for the affected party to exercise their remedy before the statute takes effect. (*Rosefield Packing Co. v. Superior Court in and for City and County of San Francisco* (1935) 4 Cal.2d 120, 122 (*Rosefield*).) If the statute operates immediately to cut off the existing remedy for a party, then the retroactive application of it is unconstitutional as to that party. (*Id.* at pp. 122-123.) “In California, statutes of limitations, being procedural, are normally retroactively applied to accrued causes of action; but the court must inquire whether, in a given case, that retrospective application may violate due process by in effect eliminating the plaintiff’s right.” (*Aronson v. Superior Court* (1987) 191 Cal.App.3d 294, 297 (*Aronson*).)

Although *Aronson* and *Rosefield* pertain to statutes of limitation rather than statutes of repose, the same due process concerns are applicable to one as to the other. “Whereas statutes of limitations affect a remedy, statutes of repose extinguish a right of action after the period has elapsed.... The effect of a statute of repose ‘is [thus] harsher than a statute of limitations in that it cuts off a right of action after a specified period of time, irrespective of accrual or even notice that a legal right has been invaded.’ [Citation.]” (*PGA West Residential Assn., Inc. v. Hulven Internat., Inc.* (2017) 14 Cal.App.5th 156, 177.) Thus, a statute of repose that extinguishes a plaintiff’s right of action immediately upon its effective date based on retroactive application infringes on the plaintiff’s due process rights.

It is evident from these cases that the main concern is the possibility that a new statute of limitations invalidates previously valid claims. Under Code of Civil Procedure, section 871.20, there is a possibility due to tolling that a claim that could have been brought under the previous four-year statute of limitations can no longer be brought under the new six-year statute of repose. If this possibility arises, the application of the new statute of repose would be unconstitutional as to that plaintiff.

Here, Plaintiff’s claims would be viable under the old statute of limitations for Song-Beverly claims of four years. (*Mexia v. Rinker Coat Co., Inc.*, *supra*, 174 Cal.App.4th 1297, 1305-1306 [“(1) An action for breach of any contract for

sale must be commenced within four years after the cause of action has accrued.... [¶] (2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered"].)

The warranty period relating to an implied or express warranty accompanying a sale of consumer goods is tolled for the period from when the buyer delivers nonconforming goods to the manufacturer or seller for warranty repairs or service or notifies the manufacturer or seller of the nonconformity, until the goods are returned to the buyer or the buyer is notified that the goods are repaired. (Civ. Code, § 1795.6.)

Plaintiff

has sufficiently stated a repair timeline for when the Subject Vehicle was sent to Defendant for repairs. Plaintiff alleges that she presented the Subject Vehicle to Defendant for repairs on June 19, 2018; April 30, 2019; November 2, 2019; August 14, 2020; December 1, 2020; February 15, 2022; July 29, 2022; March 28, 2024; June 26, 2024; and October 30, 2024. (SAC ¶¶ 14-13.) Plaintiff then alleges that she discovered Defendant's wrongful conduct alleged herein when she continued to experience symptoms of the Vehicle's defects after Defendant's unsuccessful attempts to repair it and or representations the Vehicle was working as designed. (Id. ¶¶ 41, 46, 51.) Thus, the Court finds that Plaintiff has alleged sufficient facts regarding the repair history of the Subject Vehicle, given that the statute of limitations begins to accrue from the time that the allegedly defective vehicle is presented to the manufacturer or its representative for repairs.

The demurrer to the first, second, and third causes of action is overruled.

b.

Fourth Cause of Action: Fraudulent Inducement – Concealment

“[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been

under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.' [Citation]." (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 868 (Blickman).)

i.

Statute
of Limitations

Similarly to the above causes of action, Defendant solely demurs to the fourth cause of action on the grounds that this claim is time barred by the applicable statute of limitations, as Plaintiff purchased the Subject Vehicle on May 21, 2017, but did not file the original complaint until January 31, 2025, almost eight years later.

The statute of limitations for a cause of action for fraud is three years. (Code Civ. Proc., § 338(d).) If an action is brought more than three years after commission of the fraud, the plaintiff has the burden of pleading and proving that he did not make the discovery until within three years prior to the filing of his complaint. (Hobart v. Hobart Estate Co. (1945) 26 Cal.2d 412, 437.) To benefit from the discovery rule which postpones accrual of a fraud claim, a plaintiff bears the burden of pleading their late discovery and their inability to discover the relevant facts earlier. (Czajkowski v. Haskell & White, LLP (2012) 208 Cal.App.4th 166, 177-178.);

For the same reasons as the Court stated above, Plaintiff has sufficiently alleged the repair history pertaining to the Subject Vehicle, and thus on the face of the SAC, the cause of action for fraudulent inducement – concealment.

Defendant's demurrer is overruled in its entirety.

IV.

CONCLUSION

Based on the foregoing, Defendant's demurrer to the SAC
is OVERRULED in its entirety. Defendant is ordered to file an answer or other
responsive pleading within thirty (30) days of this order.

Dated this 9th
day of July 2026

Hon. Gary D.
Roberts

Judge of the
Superior Court